

Tentative Rulings and Resolution Review Hearings

June 8, 2026

Department 63

This Court does not follow the procedures described in Rules of Court, Rule 3.1308(a). Tentative rulings are available online no less than 12 hours in advance of the time set for hearing. Tentative rulings may be found on the court's website (www.shasta.courts.ca.gov) and are available by clicking on the "Tentative Rulings" link under the "Online Services" tab. A QR code that links to the tentative rulings is posted outside the courtroom. A party is not required to give notice to the Court or other parties of intent to appear to present argument.

Telephonic appearances through CourtCall (888-882-6878; courtcall.com) are generally permitted on the Law & Motion and Resolution Review calendars and can be made without leave of Court.

8:30 a.m. – Law & Motion

BARNETT, ET AL. VS. NORTH VALLEY DEVELOPMENTAL SERVICES, INC.

CASE NUMBER: 24CV-0204885

Tentative Ruling on Order to Show Cause Re: Dismissal: An Order to Show Cause Re: Dismissal issued on April 16, 2026 to Plaintiff Matthew Barnett, in pro per, for failure to appear on January 26, 2026 as ordered on January 12, 2026, failure to appear on April 13, 2026 as ordered on February 2, 2026, and failure to participate in the action. Former counsel for Plaintiff Barnett was relieved on January 20, 2026. Since then, the Court has issued two Orders to Show Cause and imposed monetary sanctions against Plaintiff Barnett, which have not been paid. All documents that have been sent to Plaintiff Barnett by the court have been returned undeliverable. The address used for service is the last known address located by former counsel after counsel undertook significant efforts to locate Plaintiff Barnett. It is Plaintiff Barnett's obligation to keep the court apprised of a valid address. The evidence before the Court shows that Plaintiff Barnett stopped responding to counsel as late as October 2025. Plaintiff Barnett has not appeared since his counsel was relieved. It appears that Plaintiff Barnett has abandoned the case. **An appearance by Plaintiff Barnett is required on today's calendar. If Plaintiff Barnett does not appear as ordered, the Court intends to dismiss Plaintiff Barnett as a named Plaintiff without prejudice pursuant to Gov. Code § 68608(b). A dismissal will not affect Plaintiff Barnett's ability to be a putative class member.**

BAXTER, ET AL. VS. NISSAN NORTH AMERICA INC

CASE NUMBER: 26CV-0210163

Tentative Ruling on Demurrer: Defendant Nissan North America, Inc. demurs to the Complaint filed on March 17, 2026 by Plaintiffs Denaro Joseph Baxter and Cassie Lee Smith. Plaintiffs filed a First Amended Complaint on May 27, 2026 as permitted by CCP § 472(a). The filing of the First Amended Complaint renders the Demurrer moot. The matter is dropped from calendar. **No appearance is necessary on today's calendar.**

CARLS VS. MCCARTY, ET AL.

CASE NUMBER: 23CV-0203298

Tentative Ruling on Petition to Approve Minor's Compromise: This Petition for Approval of Compromise of Claim for Minor is for a settlement of minor Jaydyn Carls' claims from a dog bite incident on June 4, 2022. The Petition was filed by the minor's parent, Rena Grigalba-Carls (incorrectly listed in the Petition as Rena-Grigalba Carls), who was appointed as the minor's Guardian ad Litem on October 5, 2023. California Rule of Court, Rule 7.950 states that a petition for court approval of a minor's compromise must contain a full disclosure of all information that has any bearing upon the reasonableness of the compromise. The Petition lacks necessary

information/evidence and the requested manner of distribution of the net settlement is illegal. The following issues will need to be addressed before the Court will consider granting the Petition.

- Additional information regarding the injury is required. This includes pictures and medical records that show the significance of the initial injury and the scarring that remains. Evidence regarding any future scar revision or surgeries that may be required and any mental health treatment the minor may seek to address the ongoing emotional distress must be provided.
- Attachment 10.c. is missing. The Court requests information for how the settlement is being funded (insurance proceeds or private payment). The Court also requires information regarding the policy limits for available insurance policies and the financial situation of Defendant.
- Item 12 was left completely blank despite the minor receiving medical treatment on at least two occasions. No information has been provided for any medical expenses that were paid and by whom. Item 12 must be completed and medical bills must be attached. Petitioner is required to determine if any medical expenses were paid by Medi-Cal and provide notice of the claim to the Director of Health Care Services as noted in Item 12.b.4.(a) or comply with Item 12.b.4.(b).
- Based on the attorney fee request in Item 13, counsel is requesting 40% of the gross settlement. Attachment 13.a. was not included. Counsel is ordered to review and comply with CRC 7.951. The written attorney fee agreement was not included as Attachment 17.a. Both are required.
- In Item 18.b.(5), Petitioner requests that the \$90,000 net settlement be paid or delivered to the minor's parent, without bond. This option is only available if the value of the minor's estate, including the money to be delivered, is \$5,000 or less. \$90,000 far exceeds that limit, therefore, the proposed plan is illegal. Petitioner will need to determine a different plan for the net proceeds. Petitioner is ordered to carefully review Item 18 along with the relevant portions of the Probate Code and California Rules of Court in order to determine which plan is in the best interest of the minor. The most common methods are funding a blocked account or purchasing an annuity. If the new plan is to fund a blocked account, Petitioner must provide a proposed Order to Deposit Funds in Blocked Account (Form MC-355) and Attachment 18.b.(2) must be attached to the Amended Petition. If the new plan is to purchase an annuity, Petitioner will need to provide the purchase agreement for the annuity that includes all payments to be made over the life of the annuity as Attachment 18.b.(3). Petitioner is reminded that regardless of the plan selected, the Court will require proof that the settlement funded and net proceeds were distributed per the Order Approving Compromise.
- Petitioner did not provide a proposed Order Approving Compromise (Judicial Council Form MC-351) which is a mandatory form.
- No Proof of Service was filed indicating that Defendant was served. Service of the Petition on all parties is necessary.

Due to the extensive issues with the Petition, Petitioner will need to file an Amended Petition that includes all necessary evidence. Time is of the essence as the settlement cannot fund and the minor will not have the ability to receive interest on the settlement until funded. The Court intends to continue the matter to **Monday, August 10, 2026 at 8:30 a.m. in Department 63** for hearing on the Amended Petition. The Amended Petition is ordered to be filed no later than July 27, 2026. If Petitioner is unable to comply with the deadline, Petitioner is ordered to file by July 27, 2026 a status update informing the Court of the status of any outstanding issues, the progress made for each, and the plan/timeline for filing the Amended Petition. The clerk is directed to vacate the review hearing presently calendared for July 13, 2026.

GREAT WEST CASUALTY COMPANY VS. BOYD

CASE NUMBER: 25CVG-00585

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions ("OSC") issued on April 13, 2026 to Plaintiff Great West Casualty Company and counsel Cholakian & Associates for their

failure to timely seek entry of default and failure to timely prosecute. The Court notes that default was entered against the only named Defendant on December 12, 2025. Plaintiff was required to obtain a default judgment within 45 days of entry of default. CRC 3.110(h). The OSC issued for failure to timely seek entry of default, not failure to timely obtain a default judgment. Due to the typographical error, the OSC cannot be sustained. The OSC that issued on April 13, 2026 is **DISCHARGED**. The Court directs the clerk to issue an OSC Re: Sanctions to Plaintiff and Counsel for failure to timely obtain a default judgment as required by CRC 3.110(h) and failure to timely prosecute. Hearing on the OSC will be on **Monday, August 3, 2026 at 8:30 a.m. in Department 63.** The Court notes that while Plaintiff has sought a default judgment twice, in both instances the proposed judgment was returned for errors made by Plaintiff. Plaintiff is **ORDERED** to obtain a default judgment by the next hearing date.

JPMORGAN CHASE BANK, N.A. VS. ABRAHAM

CASE NUMBER: 25CVG-01939

Tentative Ruling on Motion for Order that Matters in Requests for Admission of Truth of Facts be Deemed Admitted: Plaintiff JPMorgan Chase Bank, N.A. seeks an order deeming the truth of the matters specified in Plaintiff's Requests for Admission, Set One to be admitted by Defendant Molly A. Abraham. Despite being timely served, Defendant not file an Opposition.

When a party fails to respond to Requests for Admission, the requesting party may move for an order deeming the genuineness of documents and the truth of matters specified in the requests admitted. CCP § 2033.280(b). Failure to respond also waives any objections to the discovery propounded. CCP § 2033.280(a). Plaintiff's moving papers sufficiently demonstrate that Defendant has failed to respond to Request for Admissions, Set One within the required time frame. Unlike a motion to compel *further* responses, a motion to compel responses when no responses have been provided does not require the propounding party to demonstrate good cause or that it satisfied a meet-and-confer requirement. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal. App. 4th 390.

Monetary sanctions are mandatory per CCP § 2033.280(c), however, Plaintiff did not seek monetary sanctions and provided no evidence regarding attorney's fees or other costs associated with bringing the motion. Sanctions should only be imposed for "reasonable" expenses. CCP § 2033.030. The Court does not have information upon which to make a finding that any amount of sanctions were for reasonable expenses and will not impose sanctions.

The motion is **GRANTED**. Defendant is deemed to have admitted as true each of the items contained in Plaintiff's Request for Admissions, Set One. Objections are waived. Plaintiff provided a proposed Order that will be executed by the Court. The Court confirms the trial date of November 23, 2026.

MCCLOSKEY VS. CITY OF REDDING

CASE NUMBER: 26CV-0209559

Tentative Ruling on Amended Petition for Order Relieving Petitioner from Provisions of Gov. Code § 954.4 (Gov. Code § 946.6) and for Injunctive Relief Abating Public and Private Nuisance: Petitioner Allen Donald McCloskey filed an Amended Petition for Order Relieving Petitioner from Provisions of Gov. Code § 954.4 (Gov. Code § 946.6) and for Injunctive Relief Abating Public and Private Nuisance on April 13, 2026. The Amended Petition is opposed by Respondent City of Redding.

As a preliminary matter, while Petitioner has added "Injunctive Relief Abating Public and Private Nuisance" when filing the Amended Petition, this is not proper. This case was opened as a petition for relief from the requirement that Petitioner file a government tort claim prior to filing an action against a government entity. Should Petitioner intend to move forward with any claim against Respondent, or any other government entity, Petitioner would need to file a complaint under a separate case. This tentative ruling addresses only the merits of

the government claim issue.

Except as provided in Sections 946.4 and 946.6, no suit for money or damages may be brought against a public entity on a cause of action for which a claim is required to be presented in accordance with Chapter 1 (commencing with Section 900) and Chapter 2 (commencing with Section 910) of Part 3 of this division until a written claim therefor has been presented to the public entity and has been acted upon by the board, or has been deemed to have been rejected by the board, in accordance with Chapters 1 and 2 of Part 3 of this division.

Gov. Code § 945.4.

A claim relating to a cause of action for death or for injury to person or to personal property or growing crops shall be presented as provided in Article 2 (commencing with Section 915) not later than six months after the accrual of the cause of action. A claim relating to any other cause of action shall be presented as provided in Article 2 (commencing with Section 915) not later than one year after the accrual of the cause of action.

Gov. Code § 911.2(a).

Gov. Code § 946.6(a) provides in relevant part: “If an application for leave to present a claim is denied or deemed to be denied pursuant to Section 911.6, a petition may be made to the court for an order relieving the petitioner from Section 945.4.” Such an application must be filed within six months after the application to the board is denied or deemed to be denied pursuant to Section 911.6. Gov. Code § 946.6(b).

Petitioner filed a claim with the City of Redding on October 30, 2025. It is on the City of Redding claim form and has “\$75,000” written at the top. The date of occurrence is listed as “July 16, 2020 – Current Day” and the time of occurrence is listed as “October 30, 2024 – Oct.” In Item 4, Petitioner lists the injuries as Public Nuisance under Civ. Code §§ 3501 and 3490, mental suffering, loss of use and enjoyment, loss of value and “5+ year consistent major homeless encampment.” On November 12, 2025, City of Redding Risk Management sent Petitioner a Notice of Return of Late Claim and Notice of Rejection informing Petitioner that any and all claims that arose prior to six months prior to October 30, 2025 were returned as untimely and that all claims that arose within those six months were rejected.

An Application for Leave to Present a Late Claim was not submitted directly to the City of Redding, however, an employee at George Hills received an Application via email and forwarded the Application to Risk Management on December 2, 2025. In the Application, Petitioner indicates that the late claim was due to excusable neglect/reasonable mistake, physical/mental incapacity, inability to afford legal representation, and misleading statements by City agents. In the Application, Petitioner wrote, “Additionally, this delay was due to extending to the City of Redding and its acting agents the spirit of cooperation and not resorting immediately to legal posturing and/or undertaking legal actions(s). This exact sentiment can be confirmed by reviewing the number of correspondences on the matter, attempts to work with neighborhood preservation, and others.” On December 23, 2025, City of Redding Risk Management sent Petitioner a Denial of Application for Leave to Present a Late Claim.

The Petition in this matter was filed on January 2, 2026 and the Amended Petition, which is now before the Court was filed on April 13, 2026. In the Amended Petition, Petitioner wrote that in the October 30, 2025 claim, he was “seeking redress for negligence, public and private nuisance, intentional infliction of emotional distress (IIED), and negligent infliction of emotional distress (NIED).” While this appears to be the relief he is seeking now, not all of these claims were included in the October 30, 2025 Claim which then formed the basis of the Application for Leave to Present a Late Claim. In addition to identifying which claims Petitioner seeks leave for, the

timeframe for the claims must also be determined. Under the Factual Background section of the Amended Petition, Petitioner lists the underlying tort claims as “spanning from **2013 to the present day**” (emphasis in the original). Petitioner lists the homeless encampments in the Linden Avenue/Mercy Canyon area of Redding, California as being “meticulously documented in Petitioner’s Complaint filed on December 19, 2025” and wrote “**(Exhibit)**” after. However, there is no corresponding exhibit and the Court was not able to locate such Complaint in this case file. Thus, based on the arguments and evidence provided by Petitioner, the claims Petitioner seeks to file span as far back as 2013. Respondent City of Redding provided evidence that Petitioner obtained title to APN 104-450-011 on August 25, 2020. Petitioner received a Notice of Intent to Abate Public Nuisance and corresponding abatement warrant in May of 2023. At the latest, it appears that each of the claims accrued in May 2023. While it could be possible that claims accrued later, Petitioner has failed to articulate that.

If the Court were to find that the Amended Petition was timely filed for the claims at issue, relief from the failure to timely present a government tort claim would be available if the petitioner establishes by a preponderance of the evidence the failure was “through mistake, inadvertence, surprise, or excusable neglect.” Gov. Code § 946.6(c)(1); *Shank v. County of Los Angeles* (1983) 139 Cal.App.3d 152, 156.

Before a court may relieve a claimant from the statutory tort claim filing requirements, the claimant must demonstrate by a *preponderance of the evidence* both that the application to the public entity for leave to file a late claim was presented within a reasonable time *and* that the failure to file a timely claim was due to mistake, inadvertence, surprise or excusable neglect. (*Shank v. County of Los Angeles* (1983) 139 Cal.App.3d 152, 156 [188 Cal.Rptr. 644].)

The mere recital of mistake, inadvertence, surprise or excusable neglect is not sufficient to warrant relief. Relief on grounds of mistake, inadvertence, surprise or excusable neglect is available only on a showing that the claimant's failure to timely present a claim was reasonable when tested by the objective “reasonably prudent person” standard. The definition of excusable neglect is defined as “neglect that might have been the act or omission of a reasonably prudent person under the same or similar circumstances.” (*Ebersol v. Cowan* (1983) 35 Cal.3d 427, 435 [197 Cal.Rptr. 601, 673 P.2d 271].)

Department of Water & Power v. Superior Court (2000) 82 Cal. App. 4th 1288, 1293.

Petitioner asserts that excusable neglect and mistake caused a delay in filing a claim. Petitioner argues that he was unaware of the City’s potential legal liability until recent developments, particularly *City of Grants Pass v. Johnson*. Petitioner provided no corresponding evidence. Petitioner has provided no evidence that he ever read this opinion or how it affected his decision to file a claim. Petitioner has provided no evidence regarding when the potential liability was realized by Petitioner. Even if the Court were to take the arguments made in the Amended Petition as true, insufficient information is provided. Additionally, Petitioner wrote in his Application for Leave that “this delay was due to extending to the City of Redding and its acting agents the spirit of cooperation and not resorting immediately to legal posturing and/or undertaking legal actions(s).” This directly contradicts Petitioner’s argument that the delay was due to mistake or negligence. Petitioner has failed to meet his burden to show that the delay in filing the claim was due to excusable neglect or mistake.

Gov. Code § 946.6(c) also permits Court to grant relief due to physical or mental incapacitation. Petitioner lists a number of mental and physical issues in the Amended Petition and asserts that they caused both mental and physical incapacitation. However, no evidence was provided to support these arguments. Even if the facts asserted by Petitioner were supported by competent evidence, Respondent provided evidence that Petitioner was quite active in other legal pursuits during the time frame at issue. Petitioner did not dispute this evidence. Petitioner has failed to meet his burden of showing that physical or mental incapacitation, or a combination of both, affected his ability to timely file a claim.

Petitioner also asserts other issues such as financial constraints, lack of legal consultation, and misleading and contradictory statements. None of these arguments are articulated in a manner that gives rise to a reason to provide relief and none are supported by evidence.

Respondent argues that prejudice would occur if claims as far back as 2013 were to be permitted due to the passage of time. Respondent presented evidence of clean ups that occurred in 2023 and 2024 which changed the area at issue. Respondent also argues that even now, Petitioner has not articulated the claims in manner that puts Respondent on adequate notice. Respondent has provided evidence that it would suffer significant prejudice if Petitioner were granted the relief requested.

In summary, it appears that the Amended Petition is untimely for the claims at issue. Even if relief were available, Petitioner has failed to meet his burden of showing that the delay was caused by any of the statutory grounds. The Amended Petition is **DENIED**. Petitioner provided a proposed Order, however, it was stapled to a Notice of Lodging and cannot be unstapled. Respondent is ordered to prepare an Order consistent with the Court's ruling. The clerk is directed to close the file and vacate any future dates.

STEVENSON, ET AL. VS. MERCY MEDICAL HOSPITAL, ET AL.

CASE NUMBER: 25CV-0206834

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions issued on April 13, 2026 to Plaintiffs Brandy Louise Stevenson and the Estate of Jeffrey Stevenson and their counsel, Lipeles Law Group, APC for failure to appear on April 20, 2026 as ordered on February 17, 2026 and failure to timely serve pleadings as required by CRC 3.110. Plaintiffs have not responded to the Order to Show Cause and therefore provided no excuse for failing to appear on April 20, 2026 and failing to comply with CRC 3.110.

Plaintiffs' counsel was present on December 15, 2025 when the February 17, 2026 review hearing was set. The tentative ruling on February 17, 2026 set the April 20, 2026 hearing date with no appearance necessary. Plaintiffs had notice of the April 20, 2026 review hearing and did not appear.

Plaintiffs named several Defendants in their Complaint filed January 16, 2025. Plaintiffs filed a First Amended Complaint (FAC) on February 11, 2026. Attached to the FAC is a proof of electronic service on the Defendants who had already appeared. No other proofs of service for the FAC have been filed. This is the current status of each Defendant for which the FAC is not at issue:

- Mercy Medical Hospital and Ibraheem Kayali, MD, served electronically with FAC but have not answered.
- Dignity Health, no proof of service for FAC.
- Jesse Arnold ACNP/FNP, dismissed from Complaint on August 12, 2025 but then renamed in FAC and not served.
- Jeremy Wellman PA, dismissed from Complaint on August 12, 2025 but then renamed in FAC and not served.
- Matther Herring MD, not served with FAC.
- Julie McClelland MD, dismissed from Complaint on February 3, 2026 but then renamed in FAC and not served.
- Kiruba Dharaneeswaran MD, not served with FAC. Demurrer to Complaint dropped from calendar on April 20, 2026 based on filing of FAC.

Defendants Dana Detwiler CRNA, Khiara Scolari PA-C, and Pardeep Athwal MD have filed Answers to the FAC. CRC 3.110 sets timelines in which a plaintiff must serve a defendant and how quickly a plaintiff must seek

default if a responsive pleading is not filed. Plaintiffs appear to have completely ignored these requirements. Further, Plaintiffs have dismissed Defendants and then brought them back into the case by including them in the FAC. Plaintiffs' actions and inactions are causing unnecessary delays. This matter was filed well over a year ago and is still not at issue. Plaintiffs must take the necessary steps to get the matter at issue.

Monetary sanctions are imposed on Plaintiffs and Plaintiffs' counsel in the amount of \$250 for both failing to appear on April 20, 2026 and failing to comply with CRC 3.110. The clerk is directed to prepare the Order of Sanctions. This matter is on calendar at 9:00 a.m. today for a review hearing and the Court will address all parties at that time regarding when this matter will be at issue.

9:00 a.m. – Review Hearings

COGLITORE HOLDINGS LLC VS. BUNDY

CASE NUMBER: 26CVG-00180

This matter is on calendar for status of accounting. The Inventory has been filed. The Judgement of Abandonment By Default (Salvage) entered on March 4, 2026 ordered disposal of the mobile home. Several steps need to occur prior to the accounting being available. The matter is continued to **Tuesday, September 8, 2026 at 9:00 a.m. in Department 63** for status of accounting. **No appearance is necessary on today's calendar.**

CROWN ASSET MANAGEMENT, LLC VS. INTHAVONGSA

CASE NUMBER: 25CVG-00705

This matter is on calendar for review regarding status of judgment or dismissal. The Court notes that Plaintiff filed an Amended Complaint on April 28, 2026 and an Amended Summons issued. There is no corresponding proof of service. Plaintiff is reminded of the timelines set forth in CRC 3.740. The matter is continued to **Monday, August 24, 2026 at 9:00 a.m. in Department 63** for status of service. **No appearance is necessary on today's calendar.**

DISCOVER BANK VS. POPE

CASE NUMBER: 25CVG-00465

This matter is on calendar for review regarding status of CCP § 664.6 Dismissal. Plaintiff's Request for Dismissal with CCP § 664.6 retention was denied on April 27, 2026 because the Request for Dismissal was not signed by Defendant. Plaintiff appeared at the trial on May 4, 2026. Because the matter was on calendar for trial and Plaintiff was unable to proceed, the Court intended to dismiss the matter without prejudice. Plaintiff requested a continuance to file a proper CCP § 664.6 dismissal. The Court allowed the continuance but noted that the matter would be dismissed at the next hearing if a CCP § 664.6 dismissal were not filed. Nothing has been filed since the last hearing. This matter is dismissed without prejudice as Plaintiff was unable to proceed at the time and date set for trial. The clerk is directed to close the file and vacate any future hearing dates. **No appearance is necessary on today's calendar.**

GREAT WEST CASUALTY COMPANY VS. BOYD

CASE NUMBER: 25CVG-00585

This matter is on calendar for review regarding status of default judgment. An Order to Show Cause Re: Sanctions issued on this morning's Law & Motion calendar. The matter is continued to **Monday, August 3, 2026 at 9:00 a.m. in Department 63** for status of default judgment. **No appearance is necessary on today's 9:00 a.m. Resolution Review Calendar.**

LVNV FUNDING LLC VS. BEEMAN

CASE NUMBER: 25CVG-01919

This matter is on calendar for review regarding status of judgment/dismissal. Notice of Conditional Settlement was filed on December 3, 2025 informing the Court that the matter would be dismissed no later than June 21, 2030. The matter is continued to **Tuesday, September 3, 2030 at 9:00 a.m. in Department 63** for status of dismissal. Should the matter not be dismissed by the September 3, 2030 review hearing, the Court intends to dismiss the matter per CRC 3.1385(c)(2) and any good cause for not doing so will need to be provided at the September 3, 2030 review hearing. Alternatively, the parties may submit a stipulation and order for dismissal with the Court retaining jurisdiction per CCP § 664.6. **No appearance is necessary on today's calendar.**

OFFICER VS. MID VALLEY PROVIDERS, INC., A CALIFORNIA CORPORATION

CASE NUMBER: 22CV-0201036

This matter is on calendar for review regarding status of class notice. Plaintiff's Motion for Class Certification was granted on April 20, 2026. Plaintiff filed a status report informing the Court that due a delay in serving the Order on the Motion for Class Certification, the class list as not been received and that Defendant was unable to provide redlines to the proposed Class Notice. Plaintiff requests that the matter be continued, that the class list be ordered by June 19, 2026, and that the proposed Class Notice attached as Exhibit A be approved. The Court will not approve the proposed Class Notice without providing Defendant the opportunity to provide input. The matter is continued to **Monday, July 13, 2026 at 9:00 a.m. in Department 63** for status of class notice. Defendant is ordered to provide an updated and complete class list to Plaintiff no later than June 30, 2026. The parties are ordered to meet and confer regarding the proposed Class Notice and provide the proposed Class Notice in a joint status statement filed no later than July 6, 2026. **No appearance is necessary on today's calendar.**

PARRISH VS. DIGNITY HEALTH, ET AL.

CASE NUMBER: 25CV-0207037

This matter is on calendar for a trial setting conference. The Court notes that the matter is at issue. The Court designates this as a Plan III matter and intends to set the matter for trial not later than February 9, 2027. Only Defendants Dignity Health dba Mercy Medical Center Redding and Robert English DO have posted jury fees. The remaining parties are granted 10 days leave to post jury fees. A failure to post jury fees in that time will be deemed a waiver of the right to a jury. The parties are ordered to meet and confer prior to the hearing regarding proposed dates for trial. **An appearance is necessary on today's calendar.**

STEVENSON, ET AL. VS. MERCY MEDICAL HOSPITAL, ET AL.

CASE NUMBER: 25CV-0206834

This matter is on calendar for review regarding status of responsive pleadings and trial setting. The First Amended Complaint (FAC) is not at issue and the Court notes the following issues regarding the FAC.

- Mercy Medical Hospital and Ibraheem Kayali, MD, served electronically with FAC but have not answered.
- Dignity Health, no proof of service for FAC.
- Jesse Arnold ACNP/FNP, dismissed from Complaint on August 12, 2025 but then renamed in FAC and not served.
- Jeremy Wellman PA, dismissed from Complaint on August 12, 2025 but then renamed in FAC and not served.
- Matther Herring MD, not served with FAC.
- Julie McClelland MD, dismissed from Complaint on February 3, 2026 but then renamed in FAC and not served.
- Kiruba Dharaneeswaran MD, not served with FAC. Demurrer to Complaint dropped from calendar on April 20, 2026 based on filing of FAC.

On this morning's Law & Motion calendar, the Court imposed monetary sanctions against Plaintiffs and counsel for failure to comply with CRC 3.110. The Court expects Plaintiffs to have a clear plan for when and how they will get this matter at issue. This matter will not be set for trial until the matter is at issue. **An appearance by all parties is necessary on today's calendar.**

SYNCHRONY BANK VS. CLIFTON

CASE NUMBER: 24CVG-01822

This matter is on calendar for review regarding status of default judgment. The Court notes that this collections matter was filed on December 9, 2024 and that Proof of Service of Summons was filed on January 6, 2026. The Court has already imposed monetary sanctions for failure to timely enter default. The Court will issue an Order to Show Cause Re: Dismissal for failure to timely seek entry of default as required by CRC 3.740 and failure to timely prosecute. The Order to Show Cause Re: Dismissal will be calendared on **Monday, August 10, 2026 at 8:30 a.m. in Department 63**. The clerk is directed to prepare an Order to Show Cause Re: Dismissal. **No appearance is necessary on today's calendar.**

WELLS FARGO BANK, NA VS. BOOTH

CASE NUMBER: 25CVG-00794

This matter is on calendar for status of service. The Court notes that Defendant Donald L. Booth filed an Answer on April 20, 2026. Attached to the back of Defendant's Answer is a letter from Bonnie Baker, Attorney at Law to Plaintiff's counsel stating that Defendant was planning to file for bankruptcy. A Notice of Automatic Stay has not been filed and it is unclear if a bankruptcy has been filed. **An appearance by all parties is necessary on today's calendar.**